

		The Court finds Plaintiff did not act with substantial justification in substituting irrelevant information for relevant information and providing non-responsive answers in his first set of supplemental responses, thus, necessitating Defendant to file this Motion. Therefore, the request for sanctions is granted.
11	24-01423297 <i>Ito vs. HeyTutor, Inc</i>	Motion for Summary Judgment and/or Adjudication
12	24-01439966 <i>Loera vs. Hoang</i>	1) Motion to Compel Production 2) Motion to Compel Production <u>Motion No. 1:</u> Plaintiff's Motion to Compel Defendant Khiem Hoang's Production of Documents at Deposition is CONTINUED to 6/4/26. In the motion, Plaintiff moves to compel Defendant to produce documents in response to Plaintiff's request for production (RFP) seeking "ALL surveillance movies or photographs which have been taken of the Plaintiff, whether or not those movies/photographs actually depict Plaintiff." Defendant objected to the RFP based on attorney-client privilege and work product doctrine and premature disclosure of impeachment evidence. Defendant contends the motion was premature and improper because there was no attempt to meet and confer via phone, in person, or videoconference before filing the motion as required under the recently amended Code of Civil Procedure section 2016.040(a), which provides, "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." Defendant further argues Plaintiff failed to move to compel further responses to prior discovery requests seeking the same information and that surveillance (or "sub rosa") evidence is subject to qualified work product protection. Plaintiff has not filed a timely reply brief. Trial is set for 6/15/26. If this dispute has not been resolved, counsel for the parties are ordered to engage in further efforts to meet and confer consistent with Code of Civil Procedure section 2016.040, including whether any responsive materials are discoverable under <i>Suezaki v. Superior Court of Santa Clara County</i> (1962) 58 Cal.2d 166. Plaintiff shall file and serve a supplemental brief, not to exceed five pages, no later than 5/27/26.

		Defendants may file a supplemental brief, not to exceed five pages, no later than 6/1/26. <u>Motion No. 2:</u> Plaintiff's Motion to Compel Defendant Thu Hoang's Production of Documents at Deposition is CONTINUED to 6/4/26 for the same reasons set out above. Because the motion raises identical issues, the parties shall address the issues in a single supplemental brief for both motions as set out above.
13	24-01439303 <i>Mehrvijeh vs. Mercedes-Benz USA, LLC</i>	1) Motion to Compel Deposition (Oral or Written) 2) Motion to Compel Production <u>Motion to Compel Deposition</u> Plaintiff Faranak Omidvar K. Mehrvijeh's Motion to Compel the Deposition of Defendant Mercedes-Benz USA, LLC's Person Most Knowledgeable and Production of Document at Deposition is DENIED as moot. The parties were ordered to submit a joint status report regarding any remaining disputes related to the Motion and no joint status report was filed. Thus, the Motion is moot. <u>Motion to Compel Further</u> Plaintiff Faranak Omidvar K. Mehrvijeh's Motion to Compel Further Responses to his Requests for Production, set two, is CONTINUED to —. "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040(a).) "A determination of whether an attempt at informal resolution is adequate ... involves the exercise of discretion." (<i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 431.) The Court finds the parties meet and confer efforts are inadequate and do not reflect a good faith attempt to resolve the issues informally. The parties are ordered to engage in additional meet and confer efforts, including an in-person, telephonic, or videoconference meeting of counsel, no later than 28 calendar days before the continued hearing date. The parties are ordered to file a joint statement of remaining issues, including a description of the additional meet and confer efforts, not to exceed 10 pages, no later than calendar 9 days before the hearing. The Court shall decide the issue of sanctions at the continued hearing date.